

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

IMPACT PRODUCTS, LLC AND SAFETY ZONE, LLC,
Complainants

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED, *Respondents*.

DOCKET NO. 24-08

Served: September 6, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER STAYING PROCEEDING

On August 28, 2024, Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “Respondents” or “OOCL”) filed a Consent Motion for Stay (“Motion to Stay”), asserting that Complainants Impact Products, LLC (“IP”) and Safety Zone, LLC (“SZ”) (collectively, “Complainants”) “submitted a Joint Chapter 11 Plan of Liquidation” on August 8, 2024, and “[i]t appears that a third party, TZ SSE Buyer LLC, has or may have purchased the assets of the debtor-in-bankruptcy.” Motion to Stay at 1.

Respondents assert that TZ SSE Buyer LLC is “the apparent purchaser of Complainants’ assets, including Complainants’ claims in this proceeding” and, “the real party-in-interest [has not] yet appeared or asked to be named as a substitute complainant.” *Id.* at 1-2. This is accurate. IP and SZ remain the only identified Complainants in this proceeding, and their counsel of record have not withdrawn, nor have they moved for a substitute party. In addition, no stipulation of dismissal pursuant to 46 C.F.R. § 502.72(a)(2) has been filed. Respondents further contend that counsel for Complainants have not responded to requests for clarification, creating “substantial uncertainty” about the discovery schedule. *Id.* at 2. While it is unclear how consent was provided for the Motion to Stay if Complainants’ counsel have failed to respond to inquiries regarding the plan for the proceeding going forward, no opposing or concurring response from Complainants has been filed to dispute or clarify the Motion for Stay.

Respondents “state that they will move to dismiss for failure to prosecute if Complainants/TZ SSE Buyer LLC have not acted within 30 days after the date the stay is issued.” *Id.* at 3. The stay granted herein is in place until September 30, 2024, which is sufficient time for Complainants to stipulate to dismissal, move to substitute party or parties, and to inform the undersigned of their intention going forward.

Good cause for a short stay in this proceeding is warranted. Accordingly, it is **ORDERED** that this proceeding be **STAYED** until September 30, 2024.

It is **FURTHER ORDERED** that the current parties submit a joint status report on September 23, 2024, with an update on the status of the bankruptcy proceedings and Complainants' plan for this case going forward.

Complainants are hereby notified that failure to respond to this Order by submitting the joint status report could result in involuntary dismissal when the stay is lifted. 46 C.F.R. § 502.72(b). A dismissal under this subpart may "[operate] as an adjudication on the merits." *Id.*



Linda S. Harris Crovella
Administrative Law Judge